

23VECV05504 23VECV05504

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-14

Motion: DEFENDANTS IDA SIRETSKIY, VYACHESLAV SIRETSKIY, AND BELONA PROPERTY MANAGEMENT, LLC'S MOTION FOR JUDGMENT NOTWITHSTANDING THE VERDICT; DEFENDANT BELONA PROPERTY MANAGEMENT, LLC'S MOTION FOR A NEW TRIAL; THE SRE DEFENDANTS' MOTION FOR JUDGMENT NOTWITHSTANDING THE VERDICT

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CU%2C08%2F14%2F2026

Source SHA-256: d7cb813a5a8ee67e3c673ace2742a5ccb450181f9ecdad1740b6d97dfd464aea

Case Number: 23VECV05504 Hearing Date: August 14, 2026 Dept: U

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ANGELIKA REYN,

an individual,

Plaintiff,

vs.

MIKHAIL SIRETSKIY, an individual; MARINA

SIRETSKIY, an individual; SIRETSKIY REAL ESTATE INC., a California

corporation; VYACHESLAV SIRETSKIY, an individual; IDA SIRETSKIY, an

individual; BELONA PROPERTY MANAGEMENT, LLC, a California limited liability

company; and DOES 1-10, inclusive,

Defendants.

)

)

)

arising from a purportedly fraudulent investment transaction filed by Plaintiffs Angelika Reyn (“Reyn”) and Yevgeniy Kerbis (“Kerbis”) against Defendants Mikhail Siretskiy (“Mikhail”); Marina Siretskiy (“Marina”); Siretskiy Real Estate Inc.

("SRE"); Vyacheslav Siretskiy ("Vyacheslav"); Ida Siretskiy ("Ida"); and Belona Property Management, LLC ("Belona").

On December 12, 2023,
Plaintiff Reyn filed her complaint against Defendants, alleging: (1) breach of contract;
(2) fraud; and (3) violations of Penal Code section 496.

On
March 28, 2024, the Clerk entered Mikhail's default.

On September 30, 2024, Plaintiffs Reyn and Kerbis filed
their first amended complaint (the "FAC") against Defendants, alleging: (1) breach of contract; (2) fraud;
and (3) violations of Penal Code section 496.

On
March 19, 2026, Judge Valerie Salkin commenced a jury trial in this matter.

On
April 2, 2026, the jury returned an award in favor of Plaintiffs.

On
May 8, 2026, Judge Salkin held a prove-up as to Mikhail, who was in default.

Also
on May 8, 2026, Judge Salkin entered a judgment in favor of Plaintiffs.

On
June 8, 2026, Belona filed its notice of intent to move for a new trial and
notice of motion to vacate or modify the judgment.

Also
on June 8, 2026, Ida, Vyacheslav, and Belona (hereafter, collectively, the
"Belona Defendants") filed a second notice of intent to move for a new trial
and notice of motion to vacate or modify the judgment.

On
June 12, 2026, Judge Anthony Mohr granted the Belona Defendants' ex parte
application for an order extending time to file supplemental briefs in support
of their post-trial motions.

On

June 29, 2026, the Belona Defendants filed their motion for judgment notwithstanding the verdict.

Also

on June 29, 2026, the Belona Defendants filed their motion for a new trial.

On

June 30, 2026, the Belona Defendants filed requests for judicial notice in support of their motions.

On

July 6, 2026, SRE, Mikhail, and Marina (hereafter, collectively, the "SRE Defendants") filed their motion for judgment notwithstanding the verdict.[1]

On

July 13, 2026, Plaintiffs filed their opposition briefs as to the Belona Defendants' motion for judgment notwithstanding the verdict and motion for new trial.

On

July 14, 2026, Plaintiffs filed their opposition brief as to the SRE Defendants' motion for judgment notwithstanding the verdict.

On

July 16, 2026, the Court granted the SRE Defendants' ex parte application for an order temporarily staying enforcement of the judgment.

On

July 20, 2026, the SRE Defendants filed their reply brief as to their motion for judgment notwithstanding the verdict.

On

July 21, 2026, Plaintiffs filed their objection to the SRE Defendants' reply brief as to their motion for judgment notwithstanding the verdict.

On

July 22, 2026, the Belona Defendants filed their reply briefs.

On

July 31, 2026, the SRE Defendants filed their objection to Plaintiffs' objection to the SRE Defendants' reply brief as to their motion for judgment notwithstanding the verdict.

On

August 3, 2026, the Court tentatively denied the SRE Defendants' motion for a new trial and for an order vacating the special verdict and judgment. The Court continued the hearings on all post-trial motions to August 14, 2026.

As

of 5:00 P.M. on August 11, 2026, nothing further had been filed by any party.

B.

RULING

The

Belona Defendants' motion for judgment notwithstanding the verdict and motion for a new trial are denied. The SRE Defendants' motion for judgment notwithstanding the verdict is denied as untimely.

C. LEGAL

STANDARD

1.

Motion for New
Trial

A party may move at the close of the trial that the original verdict be vacated and any other decision be modified or vacated, in whole or in part, and a new or further trial granted on all or part of the issues for any of the following causes, materially affecting the substantial rights of the moving party:

a) Irregularity in the proceedings of the court, jury, or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial;ç

b) Juror or jury misconduct;ç

- c) Accident or surprise, which ordinary prudence could not have guarded against;¿
- d) Newly discovered evidence which could not, with reasonable diligence, have been discovered and produced at the trial;¿
- e) Excessive or inadequate damages;¿
- f) Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law;¿
- g) Error in law, occurring at the trial and excepted to by the party making the application.¿

See Code Civ. Proc., § 657.¿

A court deciding a new trial motion sits as a “thirteenth juror,” an independent trier of fact. *Jiminez v. Sears Roebuck & Co.* (1971) 4 Cal.3d 379, 387. The court has the power “to disbelieve witnesses, reweigh the evidence, and draw reasonable inferences therefrom contrary to” those of the jury. *Barrese v. Murray* (2011) 198 Cal.App.4th 494, 503 (*Barrese*) (in ruling on motion for new trial, trial court should consider credibility of witnesses independent of jury’s conclusions).

The court’s role on a new trial motion is more than looking for bare substantial evidence that might support affirmance on appeal; the court must weigh the evidence.¿ *Lane v. Hughes Aircraft Co.* (2000) 22 Cal.4th 405, 415-416.¿ Where the court’s review leads it to conclude that the jury clearly should have reached a different verdict, the court must grant a new trial.¿ *Barrese, supra*, 198 Cal.App.4th at p. 504.

2.

Motion

for Judgment Notwithstanding the Verdict

A trial court may grant judgment notwithstanding the verdict “only if it appears from

the evidence, viewed in the light most favorable to the party securing the verdict, that there is no substantial evidence in support." (Sweatman v. Department of Veterans Affairs (2001) 25 Cal.4th 62, 68; Hauter v. Zogarts (1975) 14 Cal.3d 104, 110; Code Civ. Proc., § 629.) The court may not weigh the evidence, judge the credibility of witnesses, or substitute its inferences for those the jury reasonably drew; if any substantial evidence, contradicted or uncontradicted, supports the verdict, the motion must be denied. (Hasson v. Ford Motor Co. (1977) 19 Cal.3d 530, 546.) Circumstantial evidence and the reasonable inferences drawn from it are themselves substantial evidence, and the choice among reasonable competing inferences belongs to the jury, not to the moving party. (Hasson, supra, 19 Cal.3d at p. 548.)

"The court, before the expiration of its power to rule on a motion for a new trial, either of its own motion, after five days' notice, or on motion of a party against whom a verdict has been rendered, shall render judgment in favor of the aggrieved party notwithstanding the verdict whenever a motion for a directed verdict for the aggrieved party should have been granted had a previous motion been made." Code Civ. Proc., § 629 (a).

D. DISCUSSION

The Belona Defendants move for judgment notwithstanding the verdict and for a new trial. The SRE Defendants move for judgment notwithstanding the verdict.

1.

The jury had sufficient evidence to support a determination that the Belona Defendants were liable for receipt of stolen property under Penal Code section 496.

The Belona Defendants argue Plaintiffs failed to prove at trial that the Belona Defendants received, concealed, or withheld, or aided in concealing or withholding property obtained by theft while knowing that the property was stolen. The Belona Defendants argue Plaintiffs thus failed to prove threshold elements of their claim for receipt of stolen property in violation of Penal code section 496 as against the Belona Defendants.

“Every

person who buys or receives any property that has been stolen or that has been obtained in any manner constituting a theft or extortion, knowing the property to be stolen or obtained or who conceals, sells, withholds, or aids in concealing, selling or withholding any property from the owner, knowing the property to be stolen or obtained, shall be punished by imprisonment in a state prison or in county jail for not more than one year.”² Pen. Code, § 496.³

A

defendant may be held civilly liable for receipt of stolen property under Penal Code section 496.⁴ See *Bell v. Feibush* (2013) 212 Cal.App.4th 1041, 1049. Such civil action is decided under the ordinary civil preponderance of the evidence standard for civil actions. See Evid. Code section 115. Neither the text of section 496 nor any constitutional, statutory, or decisional authority imposes a higher burden. Moreover, no criminal conviction under section 496(a) is a prerequisite to bringing or prevailing on a civil claim under section 496(c). *Bell v. Feibush*, 212 Cal. App. 4th 1041, 151 Cal. Rptr. 3d 546 (2013) *Switzer v. Wood*, 35 Cal. App. 5th 116, 247 Cal. Rptr. 3d 114 (2019) *Siry Inv., L.P. v. Farkhondehpour*, 13 Cal. 5th 333, 513 P.3d 166 (2022).

The

Court has reviewed the trial transcripts attached to the parties’ briefs. Sufficient evidence supports the jury’s determination that the Belona Defendants received, concealed, or withheld stolen property. Specifically:

· The

jury heard evidence that Mikhail received a \$15,000.00 transfer from Reyn in November 2020, and a \$35,000.00 transfer from Reyn in January 2021. The jury heard evidence that on or about November 9, 2020, Belona received a \$15,000.00 transfer from Ida and Vyacheslav’s trust account. (JNOV RJN, Exh. 5 pp. 1522:9-11, 1615:18–1616:1; see JNOV Reply, p. 4:3-11, conceding transfer on or about Nov. 9, 2020.)

· The

jury heard evidence that in March 2023, albeit about two (2) years after Reyn funded the \$35,000.00 loan, the Belona Defendants moved \$35,200.19 between their bank accounts. (JNOV RJN, Exh. 5,

pp. 1628:3-1630:23.)

· The

jury heard testimony regarding building permits for renovation work at Belona's Hayworth property pulled in October and November 2020, approximately the same period during which Mikhail received \$15,000.00 and \$35,000.00 payments from Reyn. (JNOV RJN, Exh. 4, p. 930:1–14.)

· The

jury heard testimony regarding marketing materials in which Mikhail held himself out as Belona's "investor and developer" for the Hayworth property, which he was attempting to sell for \$3.3 million. (Kiene decl., Exh. 2, p. 932:14-22.)

· The

jury heard testimony regarding a short-term rental that identified Ida and Mikhail as co-owners of a Belona apartment property. (Kiene decl., Exh. 2, pp. 937:12-938:16.)

· The

jury heard testimony from Mr. Sergei Malkov that Mikhail already had six (6) judgments against him exceeding \$1 million and was "shielding" himself from other lawsuits by "funneling, sending the money" to Belona. (Kiene decl., Exh. 2, p. 935:5-15.)

· The

jury heard testimony from Mr. Malkov that many of Belona's bank statements were missing or incomplete and that Belona's records reflected heavy cash activity alongside claimed tax losses. (Kiene decl., Exh. 2, pp. 935:1-936:13.)

Taken

together, the foregoing evidence is sufficient for a jury to have concluded by a preponderance of the evidence that the Belona Defendants received, concealed, or withheld, or aided in concealing or withholding property obtained by theft while knowing that the property was stolen.

A reasonable jury could have concluded based on the evidence presented at trial that the Belona Defendants knowingly received from the SRE Defendants the amounts obtained from Reyn. A

reasonable jury could have likewise concluded that Mikhail shared operational duties at Belona and that those amounts were used to develop Belona properties; that amounts of funds approximately matching the amounts obtained from Reyn were transferred between Belona and Ida/Vyacheslav; and that Belona was

generally missing bank statements and other records to support its defense that funds were not being commingled.

Knowledge

most often has to be proven through circumstantial evidence. Here, based on the timing of the money transfers, the family-run structure, the commingled trust account, the joint "owner" listing, the renovation spending concurrent with Plaintiffs' funding, the missing records, and the powerful motive of a judgment-laden principal, a reasonable jury could conclude that Belona, operated by Ida and Vyacheslav, knowingly received, concealed, or withheld money obtained from Plaintiffs by theft, and that each of them aided in doing so.

The

Belona Defendants primarily argue that tracing of the funds that gave rise to the 496 action was necessary. However, the Court finds that such tracing is not necessary under a preponderance of the evidence standard. Further, the Court agrees with Plaintiffs that financial tracing evidence is not necessary where, as here, the jury is presented with other evidence that funds were commingled. Simply, the jury's determinations based on the evidence presented to it were within the bounds of reasonableness.

The

motion for judgment notwithstanding the verdict will not be granted on this ground.

2.

The Court disagrees with the Belona Defendants that the record establishes the jury improperly relied on matters deemed admitted against SRE and Marina when weighing the evidence against the Belona Defendants.

The

Belona Defendants complain that matters in RFAs that were deemed admitted as against SRE and Marina were improperly considered as evidence against the Belona Defendants. While the Belona Defendants concede that "[t]he jury was expressly instructed that the deemed admissions applied only to the admitting party," the Belona Defendants assert that "the verdict against Belona strongly suggests the jury used those admissions for precisely that improper purpose." (JNOV Motion, p. 9:16-19.) In short, the Belona Defendants argue that the deemed admissions were substituted-in where there was an absence of

evidence of a lack of intent to repay, commingling of funds, improper transfers, and concerted conduct.

The

Court disagrees that the jury was not presented with specific evidence to support a Penal Code section 496 claim beyond the matters in RFAs that were deemed admitted. The jury separately found that Mikhail was liable for theft of Reyn's property. That Mikhail was independently found liable for theft undermines the Belona Defendants' position that the jury was without other evidence of a lack of intent to repay, as the jury found that evidence against Mikhail was sufficient to establish fraudulent intent.

As

noted above, the jury heard evidence sufficient to support their conclusion that Mikhail and the Belona Defendants commingled funds and engaged in improper transfers and concerted conduct. Taken together, this evidence is sufficient to show that a reasonable jury could have entered judgment against the Belona Defendants without needing to rely on matters deemed admitted against SRE and Marina.

3.

The Belona Defendants forfeited their arguments regarding Mr. Malkov's testimony by failing to raise an objection at trial, albeit the weight of the evidence can still be considered.

The

Belona Defendants argue Mr. Malkov's testimony was improper lay opinion.

"A

verdict or finding shall not be set aside, nor shall the judgment or decision based thereon be reversed, by reason of the erroneous admission of evidence unless: (a) There appears of record an objection to or a motion to exclude or to strike the evidence that was timely made and so stated as to make clear the specific ground of the objection or motion."

Evid. Code, § 353.

The

Belona Defendants failed to raise an objection to Mr. Malkov's testimony at trial. As such, their objections based on his improper lay opinion are forfeited.

The

Belona Defendants argue their objections are not forfeited because they raised written objections before trial. (JNOV

Reply, p. 5:11-15.) The Belona

Defendants present no legal authority showing that their raising of objections before trial is sufficient to preserve the objections when they are not raised at trial.

Alternatively,

the Belona Defendants argue that Plaintiffs misconstrue their position regarding Mr. Malkov's testimony. The

Belona Defendants assert that their concern is as to the sufficiency of Mr.

Malkov's testimony to support the receipt of stolen property claim, not merely that Mr. Malkov gave improper lay opinion testimony.

In

the absence of Mr. Malkov's testimony regarding shielding assets, funneling money, cash deposits, and missing bank statements, the jury still heard evidence sufficient to support a determination that Mikhail improperly commingled funds with the Belona Defendants and that the Belona Defendants improperly used or attempted to use funds obtained from Reyn to develop Belona properties. Plaintiffs put on evidence that amounts of transfers between the Belona Defendants approximately matched amounts obtained from Reyn. Plaintiffs also put on evidence that Mikhail had an executive role at Belona.

Throughout

trial, the Belona Defendants, while on the record, appeared to avoid answering questions regarding the source of their income.

For example, when asked to approximate monthly income from property

management, Ida attempted to refuse to answer the question, stating, "I don't

have to," before being directed to answer the question by the Court. (JNOV RJN, Exh. 5, pp. 1521:20-1522:11.) A reasonable jury could have drawn an inference

from the Belona Defendants' general and apparent reticence to answer questions regarding their financial situation that the Belona Defendants had improperly commingled funds as claimed by Plaintiffs.

Even

in the absence of Mr. Malkov's testimony regarding the Belona Defendants' relationship with Mikhail and their financial practices, the jury had

sufficient evidence to conclude that the Belona Defendants are liable for receipt of stolen property.

4.

Alter ego findings were supported by substantial evidence, and objections to their being decided by a jury were forfeited.

The Belona Defendants complain that alter ego theory arises from an equitable doctrine, thus alter ego findings were not for the jury to decide.

“An objection to a defective verdict must be made before the jury is discharged. Defects apparent when the verdict was read, and that could have been corrected, are waived (forfeited) by counsel's failure to timely object unless the verdict itself is inconsistent.” Keener v. Jeld-Wen, Inc. (2009) 46 Cal.4th 247, 265 (Keener) (cleaned up).

The Belona Defendants concede that they did not object to the special verdict form before the jury was discharged. Their argument that alter ego question should not have been submitted to the jury is thus forfeited.

The Belona Defendants argue that the evidence was nonetheless insufficient to support an alter ego determination. The Court disagrees for reasons already stated herein. Based on the evidence at trial, a jury could have reasonably drawn an inference that the Belona Defendants used Reyn's loan to develop Belona properties, and that Mikhail and the Belona Defendants shared a sufficient unity of interest that, for purposes of Mikhail's fraud, their separate personalities do not really exist. There was also sufficient evidence presented at trial re: comingling of funds and Mikhail's equitable ownership interest in Belona for a reasonable jury to determine that the Belona Defendants and Mikhail were each other's alter egos.

5.

Other challenges to the special verdict form were also forfeited.

The Belona Defendants complain that Question 25 on the special verdict form did not “identify which defendants” acted in concert.

“An objection to a defective verdict must be made before the jury is discharged. Defects apparent when the verdict was read, and that could have been corrected, are waived (forfeited) by counsel’s failure to timely object unless the verdict itself is inconsistent.” Keener, *supra*, 46 Cal.4th at p. 265.

Again, the Belona Defendants accepted the special verdict form without objection. As such, their challenges to the special verdict form have been forfeited.

6. The punitive damages awards are supported by evidence presented at trial.

The Belona Defendants argue the punitive damages awards are improper because the jury was without clear and convincing evidence of malice, oppression, or fraud and no meaningful evidence of their financial condition.

“In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” Civ. Code, § 3294.

The evidence presented at trial was sufficient for a reasonable jury to conclude that there was clear and convincing evidence of oppression, fraud, or malice by the Belona Defendants. Again, evidence of comingled funds, evidence that the Belona Defendants used Reyn’s funds to develop Belona’s properties, and the Belona Defendants’ general reticence to

answer questions and/or provide documentation re: their finances provided the jury a reasonable basis to find that the Belona Defendants acted maliciously and with an intent to defraud Reyn.

Reyn

and Kerbis are sympathetic plaintiffs, having immigrated to the United States shortly before the facts of this case commenced. The jury was not unreasonable in finding that the Belona Defendants (along with the SRE Defendants) acted to malign them if, as the jury also determined, the Belona Defendants are jointly liable for Plaintiff's Penal Code section 496 claim.

While the Belona Defendants may disagree with how the jury weighed the evidence, the Court disagrees that the jury was without clear and convincing evidence to support awards of punitive damages.

Punitive

damage awards must be examined in light of defendants' financial conditions. See *Adams v. Murakami* (1991) 54 Cal.3d 105, 110-111.

The

evidence presented at trial was sufficient for a reasonable jury to conclude that the specific punitive damage awards issued against the Belona Defendants (\$75,000.00 against Belona, \$25,000.00 against Ida, and \$25,000.00 against Vyacheslav) were proper as against each of them. Specifically, the jury heard evidence of Belona's ownership of income-producing apartment properties on Mansfield and Hayworth, monthly property income in the amount of \$15,000.00, and the Belona Defendants' bank records and tax returns.

Such diverse forms of evidence of the Belona Defendants' financial conditions are sufficient to support a reasonable jury's finding as to the specific amounts of punitive damages awarded against each of them.

The

Court agrees with Plaintiffs that the modesty of the awards (between \$25,000.00 and \$75,000.00 as against each defendant) also undermines the Belona Defendants' argument that the jury's awards exceeded their abilities to pay.

The

Belona Defendants present no further arguments in support of their motion for judgment notwithstanding the verdict.

Their motion for judgment notwithstanding the verdict is denied.

7.

The Belona Defendants' motion for a new trial is denied.

The

Belona Defendants' arguments supporting their motion for a new trial largely echo the arguments addressed herein re: their motion for judgment notwithstanding the verdict. Upon reviewing the trial transcripts and reweighing the sufficiency of the evidence, the Court agrees with the jury's verdict.

The

Court recognizes that a different judge presided over the trial in this case. Even so, this Court disagrees with the Belona Defendants that the evidence presented at trial does not support the jury verdict. While Ida and Vyacheslav advance a version of events wherein Mikhail used Reyn's funds to develop his own "capital-intensive Cangas investment property" and other exploits (see New Trial RJN, Exh. 3, p. 628:2-28), the Court finds Mikhail's testimony on this topic suspect. While Mikhail testified that he generally had other obligations in 2021 that were contributing to his financial difficulties, Mikhail's testimony does not credibly establish that Reyn's funds went to develop the Cangas investment property rather than to develop Belona properties. Mikhail was generally unknowledgeable as to the Cangas property. (See, e.g., New Trial RJN, Exh. 3, p. 628:26-28: "I don't remember when I opened the entity.") Given that the jury found substantial evidence that Mikhail defrauded Plaintiffs, the Court declines to give Mikhail's own testimony much credibility, especially when his testimony concerns where Reyn's funds were directed.

Again,

the Court notes its concern that the Belona Defendants appeared generally unwilling and uneager to provide trial testimony regarding the nature of their financial situation and the sources of their income. Based on the weight of the evidence presented at trial, the Court agrees with the jury that the trial record establishes by a preponderance of the evidence that Mikhail intended not to repay Reyn's loan when the funds were obtained; that Mikhail and the Belona Defendants shared a sufficient unity of interest that they were each other's alter egos; that the Belona Defendants acted in concert with Mikhail to divert knowingly stolen

funds for the purpose of developing Belona properties; and that the Belona Defendants did so intentionally, maliciously, and oppressively.

The Court reaches the same conclusion regardless of whether it considers Mr. Malkov's testimony regarding the Belona Defendants' business practices and other lawsuits against Mikhail/SRE. Given that other credible evidence compels a determination that the Belona Defendants are liable, the Court finds no prejudice arising from Mr. Malkov's testimony that might have tainted the jury's verdict.

Again, there is no evidence to support the Belona Defendants' position that matters deemed admitted against Marina and SRE were improperly weighed against the Belona Defendants. The jury was specifically instructed that deemed admissions only applied to the admitting party. There is evidence sufficient to show Mikhail is liable for fraud in absence of deemed admissions. Thus, there is no merit to the Belona Defendants' argument that they were improperly lumped in with Marina and SRE when the jury considered deemed admissions.

Finally, the Belona Defendants argue the judgment must be corrected to reflect that the Belona Defendants prevailed on count #1 and count #2 by nonsuit. As currently entered, the judgment already specifies that Plaintiffs only prevailed on those claims as against the SRE Defendants and not against the Belona Defendants. (See Kiene Decl., Ex. 3, ¶¶ 1–2.) That the Belona Defendants prevailed on count #1 and count #2 is thus included in the judgment by implication. The Court sees no utility in amending the judgment to formally recite that the Belona Defendants partially prevailed on their motion for nonsuit when that information is already included in the judgment by implication.

In sum, the Court agrees with the jury's findings. Plaintiffs' awards of damages against the Belona Defendants, including punitive damages, are supported by substantial evidence and proportionate to the weight of the evidence. There are no grounds for remittitur or a new trial. The motion for a new trial is denied.

8.

The SRE Defendants' motion for judgment notwithstanding the verdict filed on July 6, 2026, is denied as untimely.

The

Court already denied the SRE Defendants' motion for a new trial and for an order vacating the special verdict and judgment on August 3, 2026. Separately, on July 6, 2026, the SRE Defendants filed a motion for judgment notwithstanding the verdict. That motion is fatally untimely.

A

motion for judgment notwithstanding the verdict must be filed "[w]ithin 15 days of the date of serving notice of entry of judgment by the clerk of the court pursuant to Section 664.5, or service upon them by any party of written notice of entry of judgment, or within 180 days after the entry of judgment, whichever is earliest." Code Civ. Proc., § 659 (a)(2).

Plaintiffs

served an amended notice of entry of judgment on June 6, 2026. (Plaintiffs' RJN, Exh. B.) 15 days after June 6, 2026, was Sunday, June 21, 2026. Thus, the SRE Defendants' deadline to file and serve a motion for judgment notwithstanding the verdict was Monday, June 22, 2026. The SRE Defendants did not file their motion until July 6, 2026, thus their motion was untimely filed.

The

statutory time limits for filing motion for judgment notwithstanding the verdict are mandatory and jurisdictional.

See *Palmer v. GTE California, Inc.* (2003) 30 Cal.4th 1265, 1271-1273. The SRE Defendants motion for judgment notwithstanding the verdict is thus denied as untimely.

In

their reply brief, the SRE Defendants request, for the first time, that the Court exercise independent authority to consider their motion under Code of Civil Procedure section 629 (a). Given that this request was not included as part of the SRE Defendants' initial moving papers, the Court declines to exercise such independent authority on its own

motion.

Because

the July 6, 2026 motion for judgment notwithstanding the verdict is fatally untimely, the Court need not reach the substance of the arguments therein. Nor does the Court need to consider the SRE Defendants' sur-sur-reply filed on July 31, 2026. The Court generally refers the SRE Defendants to its analysis hereinabove re: the Belona Defendants' motions. The Court also refers the SRE Defendants to its analysis included in its minute order dated August 3, 2026, wherein the Court addressed several of the same arguments raised by the SRE Defendants in their untimely motion for judgment notwithstanding the verdict.

E. CONCLUSION

The

Belona Defendants' motion for judgment notwithstanding the verdict and motion for a new trial are DENIED.

The

SRE Defendants' motion for judgment notwithstanding the verdict is DENIED.

Plaintiffs

are ORDERED to give notice.

DATED: August 14, 2026

Lee

S. Arian

Judge of the

Superior Court

[1] As of their

post-trial filings, SRE, Mikhail, and Marina are self-represented. See *Harding v. Collazo*, (1986) 177 Cal.App.3d 1044, 1056 (self-represented litigants held to same standards applied to licensed attorneys); see also *Monastero v. Los Angeles Transit Co.*, (1955) 131 Cal.App.2d 156, 160-161 ("litigant is permitted to present his own case, but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before

our courts”).